

2. **Chose en action.**—If the trust fund be a *chose en action*, as a *debt*, which may be reduced into possession, it is the trustee's duty to be active in getting it in; and any unnecessary delay in this respect will be at his own personal risk (*b*). A marriage settlement often contains a *covenant by one of the parties for payment of [*288] a certain sum to the trustees within a limited period, and if the Statute of Limitations be allowed to run so that the claim is barred, the trustees are answerable (*a*); and *à fortiori* the trustees will be responsible if they execute the settlement and sign a receipt for the money but do not actually receive it (*b*).

Prepayment.—Though trustees may be answerable for delaying *after* the proper time to get in a *chose en action*, there can be no objection to their receiving it *before* the time, if the person liable be willing to pay it (*c*). [And trustees of a reversionary *chose en action* may concur with the person entitled to the prior interest in calling for an immediate transfer to themselves of the *chose en action* (*d*).]

3. **Executors.**—There is no inflexible rule as to the time within which *executors* are bound to get in the assets; but in every case the particular circumstances must govern, and the Court allows the executors a large discretion (*e*). Thus

(*b*) *Caffrey v. Darby*, 6 Ves. 488; *Platel v. Craddock*, C. P. Cooper's Cases, 1837–8, 481; *Jones v. Higgins*, 2 L. R. Eq. 538; *Ex parte Ogle*, 8 L. R. Ch. App. 711; *McGachen v. Dew*, 15 Beav. 84; *Wiles v. Gresham*, 2 Drew. 258; *Waring v. Waring*, 3 Ir. Ch. Rep. 335; *Tebbs v. Carpenter*, 1 Mad. 298; *Grove v. Price*, 26 Beav. 103; and see *Rowley v. Adams*, 2 H. L. Cas. 725; *Macken v. Hogan*, 14 Ir. Ch. R. 220.

(*a*) *Stone v. Stone*, 5 L. R. Ch. App. 74.

(*b*) *Westmoreland v. Holland*, 23 L. T. N. S. 797; 19 W. R. 302; affirmed W. N. 1871, p. 124.

(*c*) *Mills v. Osborne*, 7 Sim. 30; *Maskelyne v. Russell*, W. N. 1869, p. 184.

[(*d*) *Anson v. Potter*, 13 Ch. D. 141.]

(*e*) *Hughes v. Empson*, 22 Beav. 183, per M. R.

Harrington, 51 N. H. 409; *Warren v. Copelin*, 4 Met. 594; *Wood v. Partridge*, 11 Mass. 488; *Littlefield v. Smith*, 17 Me. 327; *Maybin v. Kirby*, 4 Rich. Eq. 105. It has been held, however, that a payment by the debtor without notice will terminate his liability; *Reed v. Marble*, 10 Paige, 409; but not so if payment is made after notice; *Judson v. Corcoran*, 17 How. 614; *Brashear v. West*, 7 Pet. 608. The trustee must collect promptly the bills receivable, or become liable for the delay: *Neff's App.* 57 Pa. St. 91; *Cross v. Petree*, 10 B. Mon. 413; *Hester v. Wilkinson*, 6 Humph. 215.